

Canbury Place Car Park (also known as Kingston Gate)

in the Royal Borough of Kingston upon Thames

planning application no. 19/02323/FUL

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Hybrid planning application for the redevelopment of the Canbury Place car park and adjacent land to deliver new built-to-rent homes along with retail, leisure, community and employment space, public realm improvements and associated access and parking arrangements.

The applicant

The applicant is **Kingston Gate Properties Ltd** and the architect is **Jo Cowen Architects**.

Strategic issues summary

Principle of development: The proposed residential-led mixed use redevelopment of this underutilised brownfield site is strongly supported in this opportunity area and town centre location (paragraphs 19-29).

Affordable housing: 31% affordable housing (by hab room) is proposed at 73% Discount Market Rent (DMR) and 27% London Living Rent (LLV). The blended threshold for the site is 42%. This does not qualify for the Fast Track Route and does not meet the Mayor's preferred Built to Rent tenure split. The affordable housing offer and the proportion of LLR units should be increased. Further information is required on the proposed rent levels for the affordable products across the scheme. GLA officers will robustly interrogate the applicant's detailed viability assessment to ensure that the maximum level of affordable housing is delivered. (paragraphs 30-48).

Urban design and heritage: The broad site layout, height and massing of the buildings are generally supported, however development appears bulky on townscape views and the architecture and materiality of the blocks should be simplified further. Further public benefits should be demonstrated to outweigh the harm caused to the significance of the heritage assets. (paragraphs 49-67).

Climate change: Further evidence is required to support the savings claimed and ensure compliance with policies. As there is limited further potential for carbon dioxide reduction on site, a contribution to the borough's offset fund should be secured. Further information on residential water consumption and urban greening is required (paragraphs 68-72).

Transport: The impact on the highway network is still to be determined. Further information is required to confirm that the application complies with the transport policies in the London Plan and the Intend to Publish London Plan. A number of specific mitigation measures and further work is required. Contributions to facilitate the scheme may be requested (paras 73-88).

Recommendation

That the Royal Borough of Kingston Upon Thames be advised that the application does not yet comply with the London Plan and the Intend to Publish London Plan for the reasons set out in paragraph 92 of this report. However, the resolution of these issues could lead to the application becoming compliant with the London Plan and the Intend to Publish London Plan.

Context

1 On 14 October 2019, the Mayor of London received documents from the Royal Borough of Kingston Upon Thames notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor must provide the Royal Borough with a statement setting out whether he considers that the application complies with the London Plan and the Intend to Publish London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Categories 1A and 1C of the Mayor of London Order 2008:

- **Category 1A:** *“Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.”*
- **Category 1C:** *“Development which comprises or includes the erection of a building of (c) more than 30 metres high and is outside the City of London.”*

3 Once the Royal Borough of Kingston Upon Thames has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The environmental information for the purposes of the Town and Country Planning (Environmental Impact Assessment) Regulations has been taken into account in the consideration of this case.

5 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

6 The 0.98 hectare application site is bounded to the north by the recently completed Queenshurst residential development, to the north-east by Kingston College, to the east by Richmond Road, to the south by Sopwith Way and to the west by Seven Kings Way. The application site consists of four parcels of land: Canbury Place car park, which is a Council-run surface level car park containing 111 spaces; 12-50 Kingsgate Road which is a vacant site formerly occupied by Kingsgate Business Centre and which benefits from an existing planning permission for a student accommodation block and some employment space; 52 Kingsgate Road, which contains two commercial units and two residential flats above and 13-43 Richmond Road, which consists of a terrace containing 15 ground floor commercial units with 11 existing residential flats on the upper floors. The immediate context to the site contains a number of blocks of residential flats.

7 The application site sits within Kingston town centre and the Intend to Publish London Plan identifies Kingston as an Opportunity Area. The site is not in a conservation area and there are no listed buildings on the site. However, there are conservation areas and some listed buildings in the vicinity of the site.

8 The closest section of the Transport for London Road Network (TLRN) is the A3 Kingston Bypass which is over 3.5 kilometres east of the site. The closest section of the Strategic Road Network (SRN) is the A308 Wood Street located approximately 100 metres south of the site. A number of Mini-Holland cycle schemes are proposed or under construction within the town centre. The site is located approximately 200 metres north of Kingston rail station. Bus stops are located on Wood Street, Kingsgate Road and the Cromwell Road Bus Station providing access to 22 routes. The site has a Public Transport Access Level (PTAL) of 6a, on a scale of 0 to 6b where 6b is the most accessible.

Details of the proposal

9 It is proposed that an application for a residential-led mixed use development be submitted in hybrid form. The full details of the proposal are set out below:

Detailed application:

10 Demolition of existing buildings and erection of two buildings of up to 25 storeys to provide 372 residential apartments (use class C3), 1,738 sq.m. office/retail space (flexible use class B1a/A1-A3) and 734 sq.m. nursery/offices (flexible use class D1/B1a) and 696 sq.m. gym/offices/retail (flexible uses class D2/B1a/A1-A3) with associated access, parking and landscaping arrangements, including the stopping up of Kingsgate Road.

Outline application with all matters reserved except access

11 Demolition of existing buildings and erection of a new building of up to 6 storeys to provide up to 73 residential apartments (use class C3) and up to 739 sq.m. retail space (use classes A1-A3).

12 The application site will be redeveloped in two phases. Phase 1 will include the majority of the proposed residential development as well as the office, retail, nursery, gym floorspace (detailed application). Phase 2 will include the redevelopment of the existing shopping parade at 13-43 Richmond Road (outline application).

Case history

13 As noted above the land at 12-50 Kingsgate Road formally occupied by Kingsgate Business Centre and immediately to the south of the Queenshurst development benefits from an existing planning permission (LPA ref. 13/12690) granted on appeal in November 2014 for a student residential development (228 bed spaces) with 500 sq.m. of employment space and no affordable housing. Reserved matters (15/12961/REM) were approved in July 2017. Works to implement this planning permission were undertaken in July 2019.

14 The planning history for the sites along Richmond Road include various small-scale residential and commercial planning applications.

15 A pre-application meeting was held on 20 October 2017 with GLA officers. Officers were generally supportive of the scheme. No pre-application advice was issued pending some design amendments.

Strategic planning issues and relevant policies and guidance

16 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the Royal Borough's Core Strategy Development Plan Document (2012); Kingston Town Centre Area Action Plan (K+20) (2008); and the London Plan 2016 (Consolidated with Alterations since 2011).

17 The following are relevant material considerations:

- The National Planning Policy Framework and National Planning Practice Guidance;
- Intend to Publish London Plan (December 2019);
- The Mayor's Affordable Housing and Viability SPG (August 2017). This must be read subject to the decision in *R (McCarthy & Stone) v. the Mayor of London*;
- Kingston Direction of Travel (Oct 2016);
- New Local Plan Early Engagement Document (Regulation 18, May 2019);
- North Kingston Development Brief (Oct 2016);
- Affordable Housing SPD (May 2013).

18 The relevant strategic issues and corresponding policies are as follows:

- Mix of uses *London Plan;*
- Social infrastructure *London Plan;*
- Housing *London Plan; Housing SPG; Housing Strategy; Shaping Neighbourhoods: Play and Informal Recreation SPG; Shaping Neighbourhoods: Character and Context SPG;*
- Affordable housing *London Plan; Housing SPG; Housing Strategy; Mayor's Affordable Housing and Viability SPG;*
- Urban design & heritage *London Plan; Shaping Neighbourhoods: Character and Context SPG; Housing SPG; Shaping Neighbourhoods: Play and Informal Recreation SPG;*
- Inclusive design *London Plan; Accessible London: Achieving an Inclusive Environment SPG;*
- Sustainable development *London Plan; Sustainable Design and Construction SPG; Mayor's Climate Change Adaptation Strategy; Mayor's Environment Strategy;*
- Transport *London Plan; Mayor's Transport Strategy.*

Principle of development

19 The application site falls within the Kingston Opportunity Area and is in Kingston Metropolitan Town Centre as identified in the London Plan and the Intend to Publish London Plan. The Intend to Publish London Plan identifies the opportunity area as being capable of providing an indicative 9,000 new homes and 5,000 new jobs, and Kingston Town Centre is identified in the 2016 Direction of Travel for the Royal Borough of Kingston Upon Thames document as an area with scope for significant change. The site is also identified in Kingston Town Centre Area Action Plan as a proposal site/potential redevelopment site. The North Kingston Development Brief provides a framework for the Council's vision to "transform this previously largely derelict part of Kingston Town Centre into a new residential and learning mixed use quarter" with office, commercial, student accommodation and retail (including A2/A3) and/or community, commercial, residential, car parking and education uses.

20 The Intend to Publish London Plan Policy GG2 seeks to create successful, sustainable mixed use places that make the best use of land and encourage those involved in planning and development to proactively explore the potential to intensify the use of land to support additional homes and workspaces, promoting higher density development, particularly in locations that are well-connected to jobs, services, infrastructure and amenities by public transport walking and cycling. London Plan Policy 3.3 and the Intend to Publish London Plan Policy H1 seek to increase the supply of housing in the capital.

21 The existing and proposed uses and floorspace on the site are set out in the table below:

Land use	Existing	Proposed
Residential (C3)	13 units	445 units
Retail (A1-A3)	762.9 sq.m.	739 sq.m.
Office (B1)	315.9	1,738 sq.m.
Sui generis	115.3	0
Gym (D2)	0	696
Nursery (D1)	0	734

Table 1: Proposed and existing land use schedule

22 The proposed development would result in an increase in the number of residential units (432 unit uplift), a consolidation of the retail offer, an increase in office space (1,422sq.m.) and a new gym and nursery facilities.

Residential

23 London Plan Policy 3.3 seeks to increase the supply of housing in London and sets borough housing targets, of which the Royal Borough of Kingston Upon Thames annual monitoring target is 6,434 additional homes per year between 2015 and 2025. The Intend to Publish London Plan Policy H1 introduces new targets and sets the Royal Borough a 10 year housing target of 9,640 homes for the period 2019 to 2028. London Plan Policy 3.14 and draft London Plan H8 state that the loss of existing housing should be replaced by new housing at existing or higher densities. The Intend to Publish London Plan Policy SD6 encourages mixed use or housing-led intensification in town centre locations.

24 The scheme proposes to deliver a total of 445 homes. A total of 13 units are currently on site and it has been confirmed by the applicant that these units are all private. The provision of new high quality homes will contribute to the above targets and is supported in this opportunity area and town centre locations.

Town centre uses

25 London Plan Policy 4.7 and the Intend to Publish London Plan Policy SD6 support retail, commercial, culture and leisure development on sites within town centres. Kingston Metropolitan Town Centre is identified in the London Plan and the Intend to Publish London Plan (Annexes) as a town centre with potential for high commercial and residential growth with capacity, demand and viability to accommodate new office development, generally as part of mixed-use developments including residential use.

26 In the above policy context the provision of 739 sq.m. of retail floorspace (A1-A3), 1,738 sq.m. of office (B1) floorspace and 696 sq.m. of floorspace for a gym (D2) in the metropolitan

town centre is therefore strongly supported and will contribute to the town centre's vitality and viability.

Social Infrastructure

27 London Plan Policy 3.16 and the Intend to Publish London Plan Policy S1 support the provision of social infrastructure in accessible location such as in high streets and town centres. The Intend to Publish London Plan Policy S3 encourages development proposals for housing and commercial facilities to incorporate suitable childcare provision.

28 The provision of a new nursery as part of the development is strongly supported in line with policy. Any strains the new development could put on existing social infrastructure provision in the area such as health care and education facilities should be mitigated by a developer contribution secured by the Council to comply with London Plan Policy 3.16 and the Intend to Publish London Plan Policy S1.

Conclusion

29 In the current policy context and given the application site's location in the Kingston Opportunity Area and metropolitan town centre, the proposed residential-led mixed use redevelopment of this underutilised brownfield site is strongly supported.

Housing

30 All the requisite conditions for Built to Rent (BtR) schemes as set out in the Intend to Publish London Plan Policy H11 must be secured in the Section 106 agreement. The table below sets out the proposed unit mix across Phase 1 (detailed part of the application) and Phase 2 (outline part of the application):

Phase 1			Phase 2			WHOLE SCHEME	
Private Apartments	Number of Units	Habitable rooms	Private Apartments	Number of Units	Habitable rooms	Units	Habitable Rooms
Studios	9	9	Studios	6	6		
1 Bed	118	236	1 Bed	8	16		
2 Bed	94	282	2 Bed	26	78		
3 Bed	21	84	3 Bed	7	28		
Private total	242 (65%)	611 (69%)	Private total	47 (65% of total)	128 (70%)	289 (65%)	739 (69%)
Affordable			Affordable				
80% DMR			80% DMR				
Studios	7	7	Studios	1	1		
1 Bed	65	130	1 Bed	13	26		
2 Bed	15	45	2 Bed	3	9		
3 Bed	4	16	3 Bed	1	4		
80% DMR total	91 (70% of affordable)	198 (73% of affordable)		18 (70% of affordable)	40 (73% of affordable)	109 (70% of affordable)	238 (73% of affordable)
London Living Rents			London Living Rents				
Studios	4	4	Studios	1	1		
1 Bed	35	70	1 Bed	7	14		
2 Bed	0	0	2 Bed	0	0		
3 Bed	0	0	3 Bed	0	0		
LLR total	39 (30% of affordable)	74 (27% of affordable)		8 (30% of affordable)	15 (27% of affordable)	47 (30% of affordable)	89 (27% of affordable)
Affordable total	130 (35%)	272 (31%)	Affordable total	26 (35%)	55 (30%)	156 (35%)	327 (31%)
TOTALS	372	883	TOTALS	73	183	445	1,066

Table 2: Proposed indicative unit mix for Phase 1 and Phase 2

Affordable housing

31 London Plan Policy 3.12 seeks the maximum amount of affordable housing and Policy H5 of the Intend to Publish London Plan sets a strategic target of 50%. Kingston's Core Strategy requires sites of 10 or more units to provide 50% affordable housing with a 70:30 tenure split between Social/Affordable Rent and Intermediate provision. Within these tenures, the Council's Affordable Housing SPD provides guidance on the expected mix in terms of type (houses or flats) and size (number of bedrooms). Regarding Build to Rent schemes, the Mayor expects at least 30% of any affordable homes provided as part of such schemes to be delivered at an equivalent rent to London Living Rent (LLR), with the remaining 70% at a range of genuinely affordable rents. Policy H5 of the Intend to Publish London Plan and the Mayor's Affordable Housing and Viability SPG sets out a 'threshold approach', whereby schemes meeting or exceeding a specific percentage of affordable housing by habitable room, without public subsidy, and other criteria such as tenure mix are eligible for the Fast Track Route. Such applications are not required to submit viability information to the GLA and are also exempted from a late stage review mechanism. Schemes that do not meet these requirements must follow the Viability Tested Route, which requires detailed supporting viability evidence to be submitted in a standardised and accessible format as part of any planning applications.

32 A proportion of the site comprises public land. The Mayor's Affordable Housing and Viability SPG identifies a threshold for the fast track route of 50% affordable housing for

schemes on public land, which is also included in the Intend to Publish London Plan. As the application site includes public and private land, in line with the GLA Practice Note on the Threshold Approach to Affordable Housing on Public Land (July 2018) a blended threshold which equates to a combination of the 35% threshold on private land and 50% public land applies here. This blended threshold for the Fast Track Route has been calculated by the applicant based on the public (49.7%) / private (50.3%) site areas. The blended threshold for the scheme as a whole is 42%.

33 It is proposed that an indicative 445 Built to Rent (BTR) units be delivered on this site across the 2 phases of the development with a total of 372 BTR units for the detailed phase of the scheme and 73 BTR units for the outline application. For both phases the application proposes 31% affordable housing (by habitable room) made up of 73% Discount Market Rent (DMR) and 27% London Living Rent (LLV).

34 As currently presented the application does not meet the Mayor's preferred Built to Rent tenure, which requires that a minimum of 30% of the affordable habitable rooms to be delivered at rents equivalent to London Living Rent. To qualify for the Fast Track Route, the applicant would need to achieve the 42% affordable housing blended threshold and provide at least 30% affordable housing on the initial 35% at London Living Rent levels. The applicant is advised to continue to explore whether amendments to the scheme can be made in order to proceed under the Fast Track Route. The applicant is also expected to deliver a mix of 1, 2 and 3 beds at LLR levels.

35 Further information should be provided on the proposed rent levels for the affordable products to demonstrate that they are genuinely affordable in line with the Mayor's affordability and eligibility criteria set out in the Mayor's Affordable Housing and Viability SPG and the London Plan Annual Monitoring Report. As the GLA does not publish LLR rents for studios, the applicant should demonstrate that the rents for the studios will have a sufficient discount that is proportionate to the rent levels of the 1 bed units.

36 GLA officers will continue to interrogate the applicant's viability assessment and the Council's independent review to ensure that the maximum level of affordable housing is secured. The applicant is strongly encouraged to follow the Fast Track Route to negate the need for further viability discussions and the requirement for a late stage review mechanism to apply.

37 Should the scheme not proceed under the Fast Track Route early and late stage reviews would be required and would need to be secured in the Section 106 agreement. The viability assessment and independent review must be published to ensure transparency of information in accordance with the Mayor's Affordable Housing and Viability SPG and the Intend to Publish London Plan.

38 A draft of the s106 agreement must be provided to the GLA for review as soon as one is made available to ensure that the requisite review mechanisms have been included (as required by the Intend to Publish London Plan Policy H6) and affordability and eligibility criteria for any affordable housing proposed and the built to rent units comply with the London Plan, the Intend to Publish London Plan and the Mayor's Affordable Homes Programme Funding Guidance.

39 In addition to maximising the delivery of affordable housing, the Intend to Publish London Plan Policy H4 expects all schemes to make the most efficient use of available resources. The applicant is expected to engage with the GLA Housing & Land team to explore the use of grant to increase the level of affordable housing above the thresholds set out in the s106 agreement. Contacts can be provided upon request.

Housing mix

40 London Plan Policy 3.8 and the Intend to Publish London Plan H10 promote a range of unit sizes in new developments. The Royal Borough of Kingston Upon Thames' core strategy expects proposal for new residential development to incorporate a mix of unit sizes and types and provide a minimum of 30% of dwellings as 3 or more bedroom unit, unless it can be robustly demonstrated that this would be unsuitable or unviable. The Council's Affordable Housing SPD also requires that no more than 75% of 1 beds be delivered as intermediate provision.

41 The proposal is for a range of studios, 1, 2, and 3 bed dwellings which is welcomed. However, the percentage of 3 bed units across Phase 1 and Phase 2 (6%) and in Phase 1 only (11%) is low and should be increased in consultation with the Council to meet local needs. The number of affordable family units should also be maximised in line with London Plan policy. As advised in the affordable housing section above, redistributing the number of 1 bed units at LLR across the 2 and 3 beds units would help the applicant meet local need and qualify for the Fast Track Route.

Residential quality

42 London Plan Policy 3.5 and Policy D4 of the Intend to Publish London Plan promote quality in new housing provision, with further guidance provided in the Housing SPG. In accordance with strategic priorities, it is essential that schemes deliver the highest standard of residential quality, and baseline standards are exceeded wherever possible.

43 The residential layout of Building A2 exceeds the Housing SPG's preferred 8 units per core and includes corridors which are artificially lit with no natural ventilation. While it is acknowledged that the long corridors proposed are divided by internal doors, they do not demonstrate high residential quality and their quality should be improved by the inclusion of natural light and natural ventilation. The corridors should also be widened to avoid any sense of enclosure.

44 The orientation of the blocks means that most of the units have east/west aspect maximising penetration of sunlight, which is welcomed. However, the proposed units in Buildings A1 and A2 appear deep and the applicant should demonstrate that the proposed kitchens will get enough natural day light. The applicant should also confirm that the proposed units have a minimum 2.5 metre floor to ceiling height. All units exceed the minimum space standards, which is welcomed. With regards to amenity space, all apartments have private outdoor amenity space served off the primary living space that meet the Housing SPG standard for minimum area. Communal roof terracing for residents is also proposed.

45 In terms of the outline element of the scheme, the applicant should ensure that any single aspect north facing units are avoided in any future reserved matters applications (RMAs). Compliance with the Mayor's housing standards should be secured by condition for all RMAs.

Children's play space

46 London Plan Policy 3.6 and Policy S4 of the Intend to Publish London Plan seek to ensure that development proposals include suitable provision for play and recreation, and incorporate good-quality, accessible play provision for all ages, of at least 10 sq.m. per child, with further detail in the Mayor's 'Shaping Neighbourhoods: Play and Informal Recreation' SPG and the recently updated population calculator. Policy S4 of the Intend to Publish London Plan also makes clear that play space in new residential developments should not be segregated by tenure.

47 The GLA population yield calculator requires a total of 671.5 sq.m. of play space to be delivered on-site. It is proposed that the development provides 250 sq.m. of pocket play park

with equipment for children from 0-11 years. In addition, a total of 5,388 sq.m. of publicly accessible space is proposed with playable water features and incidental play features within the wider public realm within the site. As a number of playgrounds (Canbury Gardens Playground (approx. 10 minutes' walk away); Elm Road open space Playground (6 minutes' walk away); and Kingfisher Playground (9 minutes' walk away) are located within 10 minutes of the application site, off-site play space is also proposed.

48 The proposed provision of on-site play space and off-site play space is acceptable, however this is subject to the Council securing details of the play space strategy by condition. Off-site contribution may also be requested by the Council to improve existing off-site facilities.

Urban design and inclusive design

49 The design principles in chapter 7 of the London Plan and chapter 3 of the Intend to Publish London Plan require all developments to achieve a high standard of design which responds to local character, enhances the public realm and includes architecture of the highest quality that defines the area and makes a positive contribution to the streetscape and cityscape. The Intend to Publish London Plan Policy D9 states that tall buildings should only be developed in locations that are identified in Development Plans. The Council's North Kingston Development Brief (October 2016), which is not part of the Development Plan identifies a maximum height of up to 12 storeys on the site.

50 In line with the Intend to Publish London Plan Policy D2, the applicant presented its scheme to the Council's design review panel which is welcomed.

Site layout

51 The broad site layout is generally supported and the applicant's efforts to knit the proposal into its surroundings is welcomed. The applicant's analysis of existing and potential routes through this part of Kingston town centre and around Kingston Railway Station is also welcomed and responds to the North Kingston Development Brief and desire lines through the town centre.

52 The creation of new pedestrian zones and public realm within the site is welcomed. The distribution of publicly accessible uses and residential entrances at ground level is supported and offers activity and surveillance across the scheme. However, clarity is sought on the treatment of the northern boundary of the scheme and interface with the Berkeley Homes development in terms of the treatment of its edge and pedestrian access onto the vehicular service area. The scheme should be designed to create visual permeability along this edge and a positive interface with the Berkeley Homes development.

53 The southern orientation of the proposed main area of public space at Kingsgate Garden will help create a pleasant and well-used public garden at the centre of the scheme, which is welcomed.

Form/massing/architecture

54 The tallest parts of the development are located to the centre of the site but the shoulders and perimeter buildings scale down in height to minimise the impact of the view on approaches.

55 The height of the proposed buildings is generally supported in this opportunity area and town centre location, raising no strategic concern subject to micro-climate / daylight/sunlight analysis. While the massing strategy is generally supported with buildings organised to complement new and existing streets and spaces, the development appears as a bulky ensemble from Richmond Road. To break up the mass and better respond to the local townscape character, the architecture and materiality of the blocks should be simplified

further. This can be achieved by pairing back or removing the protruding grid element to the two tallest blocks to create a cleaner profile and reduces the impression of bulk. Notwithstanding this, the design team have demonstrated a welcome degree of care and attention to detailing of facades and the use of high quality brickwork which is strongly commended. It should also be ensured that the sizing and materiality of the covered area of public realm is of the highest quality to create a welcoming and pedestrian-friendly environment. Visuals should be provided to demonstrate this.

Fire safety

56 In accordance with the Intend to Publish London Plan Policy D11 on fire safety, the applicant has submitted a fire statement. This is welcomed and the Council should confirm it is satisfied with the statement.

Inclusive design

57 London Plan Policy 7.2 and Policy D3 of the Intend to Publish London Plan seek to ensure that proposals achieve the highest standards of accessible and inclusive design. Policy 3.8 of the London Plan and Policy D5 require that at least 10% of new build dwellings meet Building Regulation requirement M4(3) 'wheelchair user dwellings' (designed to be wheelchair accessible or easily adaptable for residents who are wheelchair users); and all others must meet Building Regulation requirement M4(2) 'accessible and adaptable dwellings'.

The proposal demonstrates that it will achieve an acceptable and compliant level of accessibility with improved crossings, dedicated blue badge parking, level thresholds to all entrances of the buildings and level access to roof terrace amenity spaces, accessible commercial office, nursery and gym spaces, and high quality levelled paving across the site. The scheme proposes 10% of residential accommodation to be dedicated for 'wheelchair accessible' or capable of being 'wheelchair adaptable' to meet the Intend to Publish London Plan requirements. The units will be distributed throughout building A1 and building A2 at various levels throughout the building so a range of choice is provided with regards to the location and size of available apartments. This is welcomed and the Council should secure M4(2) and M4(3) requirements with plans showing the location and number of wheelchair accessible/ adaptable flats.

Heritage

58 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the statutory duties for dealing with heritage assets in planning decisions. In relation to listed buildings, all planning decisions should "*have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses*", and in relation to conservation areas, special attention must be paid to "*the desirability of preserving or enhancing the character or appearance of that area.*" London Plan Policy 7.8 and Policy HC1 of the Intend to Publish London Plan state that development should conserve heritage assets and avoid harm.

59 The NPPF states that when considering the impact of a proposal on the significance of a designated heritage asset, great weight should be given to the asset's conservation, and the more important the asset, the greater the weight should be. Significance is the value of the heritage asset because of its heritage interest, which may be archaeological, architectural, artistic or historic, and may derive from a heritage asset's physical presence or its setting. Significance can be harmed or lost through alteration or destruction of the heritage asset or development within its setting. Where a proposed development will lead to 'substantial harm' or total loss of the significance of a designated heritage asset, consent should be refused, unless it can be demonstrated that the substantial harm or loss is necessary to achieve substantial public benefits that outweigh that harm or loss. Where a development will lead to 'less than substantial harm', the harm should be weighed against the public benefits of the proposal, including securing its optimum viable use. In weighing

applications that directly or indirectly affect non-designated heritage assets, a balanced judgement will be required having regard to the scale of any harm or loss and the significance of the heritage asset. The effect of an application on the significance of a non-designated heritage asset should be taken into account in determining the application. In weighing applications that directly or indirectly affect non-designated heritage assets, a balance judgment will be required having regard to the scale of any harm or loss and the significance of the heritage asset.

60 There are no listed buildings on the site and it is not in a conservation area but the wider heritage context includes the Kingston Old Town Conservation Area (approximately 395 metres from the site), containing the Grade I listed All Saint's Church (approximately 450m from the site) and the Grade II listed Guildhall (approximately 650m from the site). The former Regal Cinema near the site on Richmond Road is Grade II listed and is currently undergoing extensive renovation. There is also a locally listed Kingston College building at 55-59 Richmond Road that is a non-designated heritage asset. Kingston Bridge on the River Thames west of the site is Grade II listed and is part of the Riverside Conservation Area located along the eastern bank of the Thames, approximately 390 metres from the site. The site is within a key view, 'View from Thatched House Lodge towards Guildhall' designated in the K+20 Area Action Plan.

61 The applicant's Heritage Impact Assessment and Townscape and Visual Impact Assessment (TVIA) provides an assessment of heritage assets and the impact of the proposals. The heritage assessment concludes that the proposal would have no or very minor harm on the significance of the above mentioned heritage assets.

Heritage assets adjacent to the site

62 The locally listed Kingston College and Grade II listed Former Regal Cinema both lie on Richmond Road adjacent to the site. Kingston College is a building of townscape merit and with its modern extension represent a good piece of architecture recognised locally. The formal cinema building's primary significance lies in its Art Deco interior.

63 While the proposed development would be prominent in the views from Richmond Road from the north (Views 2 and 16) and provides a new backdrop to the College building, the stepping up of the proposed buildings at the back of the College and the quality of the architecture and materials with the contrasting colours of bricks will ensure that the architectural interest of the College building continue to be appreciated in this urban context. The modern brick extension of the College building also provides a transition with the more modern buildings proposed as part of the development. GLA officers consider that the harm to the significance of the non-designated asset will be minor and will be mitigated by the approach to materials and tone and the quality of design. Given that the significance of the former cinema lies in its interior, GLA officers consider that there will be no harm to the primary significance of the former cinema building.

Surrounding conservations areas and heritage assets

64 The tall building element of the scheme would be visible in views from within the surrounding conservation areas, including the Kingston Old Town Conservation Area and the Riverside Conservation Area. In the view from the Historic Market at the centre of Kingston town centre, the proposed development would be visible in the backdrop of the view but would not dominate nor overwhelm the view. The choice of lighter coloured brick for the higher element of the proposal would also further mitigate the tallest element's visibility and appear as recessed in the background. The harm to this part of the market square would therefore be minor. The development is not visible from other parts of the Kingston Old Town Conservation Area and would preserve the character and appearance of the conservation area and listed buildings. In the view from Richmond Park toward Kingston, which is identified as a key view in the Kingston Town Centre AAP, the development would appear prominent

when looking directly at the centre of Kingston although this is only a small part of the panorama and the majority of the panorama would remain unaffected and the appreciation of the park unaltered. With regards to the impact of the development on the Riverside Conservation Area and Kingston Bridge, the development would be visible from the bridge to the left and behind the John Lewis building but would not be visually dominant. The existing overall urban form will be retained through the stepping down of the proposal and the proposal will be read as a part of the backdrop to the River Thames. The TVIA shows that the tallest element of the proposal will only be partially visible from limited part of the Riverside Conservation Area and will not affect the character and the appreciation of the qualities of the conservation area. The view relating to the Richmond, Petersham and Ham Open Spaces Act 1902 does not appear to have been tested by the applicant. The applicant is required to fully test that view before a conclusion can be made about the impact of the proposed development on the view.

Public benefits of the proposal

65 In accordance with the NPPF policy where a development leads to 'less than substantial harm', the harm should be weighed against the public benefits of the proposal.

66 The proposed development provides some public benefits in terms of redeveloping an under-used site in a town centre location, providing new homes, a co-working hub, a new nursery, delivering public realm enhancements and pedestrian routes. However, further public benefits should be demonstrated to outweigh the harm caused to the heritage assets through the delivery of a scheme of exemplary design which mitigates impact on townscape views, delivers high residential quality and an acceptable level of genuinely affordable homes.

67 In making this assessment, GLA officers have had special regard to the desirability of preserving the listed buildings, conservation areas and their settings and have given considerable importance and weight to the harm caused to heritage assets.

Climate change

Energy strategy

68 The applicant has submitted an energy assessment in accordance with London Plan Policy 5.2 and the Intend to Publish London Plan Policy SI2. The proposed strategy is generally supported, however, the applicant should submit further evidence to support the savings claimed and ensure compliance with the London Plan policies.

69 Based on the information provided, the domestic element of the proposed development is estimated to achieve a reduction of 31 tonnes per annum (10%) in regulated carbon dioxide emissions compared to a 2013 Building Regulations compliant development, which meets the on-site target set within Policy 5.2 of the London Plan for domestic uses. The non-domestic element is estimated to achieve a reduction of 21 tonnes per annum (15%) in regulated carbon dioxide emissions compared to a 2013 Building Regulations compliant development. This falls short of the on-site target within London Plan Policy 5.2. It is accepted that there is little further potential for carbon dioxide reductions onsite in this instance. The applicant has therefore confirmed that £371,186 will be paid into the borough's offset fund. This contribution should be secured in the s106 agreement.

70 Further information is required on overheating, the proposed heat network and the future proofing of the site to a future district heating network, the proposed heat pumps and the potential for photovoltaics. Full details of the outstanding issues relating to energy have been provided directly to the applicant and Council.

Sustainability

71 The approach to flood risk management for the proposed development complies with London Plan policy 5.12 and the Intend to Publish London Plan policy SI.12 and the surface water drainage strategy represents a good response to London Plan policy 5.13 and the Intend to Publish policy SI.13. However, the proposed development does not meet the requirements of London Plan policy 5.15 and the Intend to Publish London Plan policy SI.5 as it does not meet the residential water consumption targets of these policies. The proposed development's Urban Greening Factor should also be calculated, as set out in Policy G5 of the Intend to Publish London Plan and aim to achieve the specified target. Full details of the outstanding issues relating to sustainability have been provided directly to the applicant and the Council.

Air quality

72 The proposed development lies within an Air Quality Management Area and an Air Quality Focus Area, and as such the applicant has submitted an Air Quality Assessment in accordance with London Plan Policy 7.14 and the Intend to Publish London Plan Policy SI1. The Council should ensure that the mitigation measures set out in this document are valid and robustly secured.

Transport

Strategic Issues

73 The impact on the highway network is still to be determined. Should the modelling indicate significant increases in bus journey times as a result of the closure of Kingsgate Road and road diversion, TfL may seek a contribution to mitigate this. Any bus infrastructure costs to facilitate this scheme will be required to be met by the applicant.

Healthy Street

74 The proposed development will see an increase in pedestrian and cycle trips to / from the site and the local area. It is considered that the proposed development will deliver improvements that help to support a number of the ten Healthy Streets Indicators throughout the site.

Vision Zero

75 Accident analysis has been provided and whilst it does not identify measures which can be used to eliminate any of these accidents, the car free nature of this development along with improvements to pedestrian movements and the closure of Kingsgate Rod to through traffic will contribute towards the Vision Zero approach.

Vehicular Site Access

76 There will be no direct vehicular access from the TLRN.

77 The proposed development includes the closure of Kingsgate Road between Sopwith Way and Walter Street. Northbound vehicles which currently use Kingsgate Road to access Richmond Road would be required to re-route via Seven Kings Way and Sury Basin.

78 Walters Street will remain open, providing access to a pick up / drop off area and the site concierge. It would be useful to provide a plan detailing exactly what measures are proposed to ensure that this street is not going to be used for through traffic avoiding the traffic lights at the junction of Sopwith Way / Richmond Road.

Car parking

79 The development is car free with the exception of disabled person parking.

80 The disabled persons parking provision proposed for each phase would accord with the Intend to Publish London Plan. A condition should secure the disabled parking provision shown, to ensure that the extended basement is delivered as part of Phase 2. Electric Vehicle Charging Points (EVCP) including passive provision will be required to be provided in accordance with the Intend to Publish London Plan standards.

81 The full Car Parking Management Plan (CPMP) should be secured by condition and should include a commitment that if demand exceeds the provision shown within the basement, then the applicant will commit to agreeing with the borough where the additional spaces can be accommodated on street, but not to exceed a total provision of 10% of dwellings.

82 A three year free car club membership should be secured for all new residents.

Trip generation and modal split

83 The trip generation assessment is acceptable.

Highways Impact

84 The closure of Kingsgate Road requires the diversion of general traffic wanting to turn left onto Richmond Road; along Seven Kings Way and Sury Basin. Highway models have been prepared by the applicant in order to assess the impacts of the development on the strategic road network. TfL will provide a more detailed response concerning the highways impact once these models have been reviewed.

Buses

85 There is sufficient capacity on the bus network to accommodate the uplift in demand.

86 The closure of Kingsgate Road would require the diversion of bus routes 65 and 671 and the relocation of bus stop U. It is proposed that buses would divert along Seven Kings Way and Sury Basin. A bus route test has been undertaken and subject to trimming back some vegetation on both Seven Kings Way and Sury Basin the route is clear for double deck buses to operate. Any bus infrastructure costs involved with removing the existing bus stop and converting the existing stand to a bus stop will be required to be met by the applicant.

87 Should the modelling indicate significant increases in bus journey times as a result of the diversion, TfL may seek a contribution to mitigate this.

Cycle Parking

88 Cycle parking will be provided in accordance with the Intend to Publish London Plan standards. All cycle parking is required to be designed and laid out in accordance with the guidance contained in Chapter 8 of the London Cycling Design Standards (LCDS). It is advised that shower and locker facilities are also provided for those members of staff wishing to cycle to work.

Local planning authority's position

89 The Royal Borough of Kingston planning officers are currently considering the application. A committee date for the application has not yet been set.

Legal considerations

90 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

91 There are no financial considerations at this stage.

Conclusion

92 London Plan and the Intend to Publish London Plan policies on, Opportunity Areas, town centres, social infrastructure, housing, affordable housing, urban and inclusive design, heritage, climate change and transport are relevant to this application. The application does not comply with the London Plan and the Intend to Publish London Plan. The following changes might, however, lead to the application becoming compliant with the London Plan and the Intend to Publish London Plan:

- **Principle of development:** The proposed residential-led mixed use redevelopment of this underutilised brownfield site is strongly supported in this opportunity area and town centre location.
- **Affordable housing:** 31% affordable housing (by hab room) is proposed at 73% Discount Market Rent (DMR) and 27% London Living Rent (LLV). The blended threshold for the site is 42%. This does not qualify for the Fast Track Route and does not meet the Mayor's preferred Built to Rent tenure split. The number of LLR units should be increased. Further information is required on the proposed rent levels for the affordable products across the scheme. GLA officers will robustly interrogate the applicant's detailed viability assessment to ensure that the maximum level of affordable housing is delivered. The housing mix should be reviewed to meet local needs and qualify for the Fast Track Route. The residential quality should be improved.
- **Urban design:** The broad site layout, height and massing of the buildings are generally supported, however development appears bulky on townscape views and the architecture and materiality of the blocks should be simplified further.
- **Heritage:** The proposed development provides some public benefits but the harm caused to the significance of the heritage assets could be outweighed by further public benefits, including the delivery of a scheme of exemplary design which mitigates the impact on the local townscape, delivers high residential quality. It should also deliver genuinely affordable homes.
- **Climate change:** Further evidence is required to support the savings claimed and ensure compliance with London Plan and the Intend to Publish raft London Plan policies. As there is limited further potential for carbon dioxide reduction on site, a contribution to the borough's offset fund should be secured. Further information on residential water consumption and urban greening is required.
- **Transport:** The impact on the highway network of the proposed road closures is still to be determined. Further information is required to confirm that the application complies

with the transport policies in the London Plan and the Intend to Publish London Plan. A number of specific mitigation measures and further work is required. Contributions to facilitate the scheme may be requested.

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